

**JUDGMENT SHEET
IN THE LAHORE HIGH COURT LAHORE
JUDICIAL DEPARTMENT**

Writ Petition No.33416/2022

Dr. Azraf-ul-Haq Ahmad Vs. The Secretary Agriculture etc.

JUDGMENT

Date of hearing	15-04-2026
Petitioner by	Rana Abdul Jabbar, Advocate.
Respondents by	M/s Sardar Tariq Mahmood and Barrister M. Salman Khalid, Advocates. Ms. Shehzeen Abdullah, Addl. Advocate-General, Punjab along with Syed Asim, Dy. Director (Admin) PARB, Lahore.

ABID AZIZ SHEIKH, J. This Constitutional Petition is directed against the orders dated 07.05.2015 and 29.11.2019 (hereinafter referred to as the "**impugned orders**"), passed by the Deputy Registrar (Admin), Punjab Agricultural Research Board (hereinafter referred to as "**PARB**"), and respondent No.3/Chief Executive of the PARB, respectively, whereby the representations of petitioner, seeking inclusion of his *ad hoc* service rendered from 15.08.1985 (wrongly mentioned in prayer as 15.08.1998) to 13.10.1990 towards the computation of his qualifying service for the purposes of pension, were declined.

2. The relevant facts are that the petitioner was initially appointed as 'Assistant Research Officer' (BS-16) on *ad hoc* basis in the Punjab Agricultural Research Coordination Board, University of Agriculture, Faisalabad (hereinafter referred to as the "**PARC Board**"), *vide* appointment order dated 19.08.1985, with effect from 15.08.1985. Subsequently, his services were regularized without any break, *vide* order dated 14.10.1990. Thereafter, upon reconstitution of the PARC Board as the PARB and its conferment with the status of an autonomous body distinct from the University of Agriculture, Faisalabad ("**University**"), the petitioner was appointed as Research Officer

(BS-17) in the University on 11.03.1993, again without any break or discontinuity in service. The petitioner ultimately attained the age of superannuation on 11.07.2015, however, his *ad hoc* service period i.e. from 15.08.1985 to 13.10.1990, was not reckoned towards his qualifying service for the purposes of calculation of pensionary benefits. Feeling aggrieved by the non-reckoning of the aforesaid period, the petitioner filed representations before the competent authorities, which were declined through the impugned orders; hence, this Writ Petition has been instituted.

3. Learned counsel for the petitioner, placing reliance upon "Ministry of Finance through Secretary and others V. Syed Afroz Akhtar Rizvi and others" (2022 PLC (C.S.) 202), "Messrs State Oil Company Limited V. Bakht Siddique and others" (2018 SCMR 1181) and "Dr. Sher Wali Khan, Assistant Director, Health Service, Northern Areas, Gilgit V. Dr. M. Hassan Khan Amacha and 4 others" (1998 PLC (C.S.) 736), as well as Rule 2.3(ii) of the Punjab Civil Service Pension Rules, 1963 ("**Rules**") and Article 371-A of the Civil Service Regulations ("**Regulations**"), contends that the period of *ad hoc* service rendered by the petitioner with the PARB is liable to be counted towards his qualifying service for the purposes of pay fixation and pensionary benefits. It is further submitted that the consistent view of the superior courts, as enunciated in the afore-referred precedents, is that where an employee has continuously served the department and such service is subsequently followed by regularization, without any break, the said period assumes the character of qualifying service for all intents and purposes, and denial of counting such service, despite its continuity and subsequent regularization, is arbitrary, discriminatory, and violative of the settled principles.

4. Learned Law Officer as well as the learned counsel for respondent No.4, on the other hand, supported the impugned orders.

5. Arguments heard. There is no dispute that the petitioner continuously performed his duties with the PARB on *ad hoc* basis with effect from 15.08.1985 till 13.10.1990, without any interruption whatsoever, prior to the regularization of his services. In order to effectively resolve the controversy in hand, it is imperative to advert to the relevant statutory provisions, particularly Rule 2.3 of the Rules, which has a direct and material bearing upon the adjudication of instant matter. For the sake of convenience and ready appreciation, Rule 2.3 *ibid* is reproduced hereunder:-

2.3 Temporary and officiating service - Temporary and officiating service shall count for pension as indicated below:

- (i) Government servants borne on temporary establishment who have rendered more than five years continuous temporary service shall count such service for the purpose of pension or gratuity; and
- (ii) temporary and officiating service followed by confirmation shall also count for pension or gratuity.

Under Rule 2.3(i) of the Rules, a government servant borne on temporary establishment who has rendered more than five years' continuous temporary service is entitled to have such service counted towards pension and gratuity. Furthermore, Rule 2.3(ii) stipulates that temporary and officiating service, when followed by confirmation, shall likewise be reckoned for the purposes of pension and gratuity. A conjoint, harmonious and purposive reading of the aforesaid provisions leaves no manner of doubt that the legislative intent is to extend pensionary benefits to all forms of qualifying service, provided such service is continuous and ultimately culminates in confirmation.

6. In the present case, admittedly, the petitioner served with the PARB on *ad hoc* basis for a continuous period exceeding five years i.e. from 15.08.1985 to 13.10.1990, without any interruption and was regularized on 14.10.1990; consequently, such service squarely falls within the ambit of the aforesaid Rules and is, therefore, liable to be counted towards his pensionary benefits. The expression "temporary service followed by confirmation" is of wide import and necessarily encompasses *ad hoc* service, which, by its very nature, constitutes a species of

the temporary service. Any restrictive or narrow interpretation to the contrary would defeat the beneficial object underlying the pensionary regime and would be inconsistent with the settled principles governing service jurisprudence, which lean in favour of conferring, rather than denying, accrued service benefits. This interpretation finds authoritative support from the Supreme Court in the case of "Chairman/ Dean Sheikh Zayed Hospital, Lahore V. Amjad Mehmood Khan" (2025 SCMR 168), wherein, while construing Article 371-A of the Regulations, it was categorically held that contractual service rendered prior to confirmation partakes the character of temporary service and is to be counted for the purposes of eligibility of gratuity and pension. Since the provisions of Article 371-A of the Regulations are in *pari materia* with Rule 2.3 of the Rules, the dictum laid down in the aforementioned judgment is fully attracted to the facts and circumstances of the present case.

7. The legal position is further reinforced by a consistent and unbroken line of the authoritative pronouncement, including "Secretary, Ministry of Finance, Islamabad and others V. Tayyab Halim Subhani and others" (2022 SCMR 77), wherein it was held that the service rendered on daily wages for many years is liable to be counted towards pensionary benefits. Likewise in "Ministry of Finance through Secretary and others V. Syed Afroz Akhtar Rizvi and others" (2021 SCMR 1546) and "Chairman, Pakistan Railway, Govt. of Pakistan, Islamabad and others V. Shah Jehan Shah" (PLD 2016 Supreme Court 534), the Supreme Court recognized that the contractual service, upon subsequent regularization, constitutes qualifying service for the purpose of pension and gratuity. Similarly, in "Muhammad Abbas Halephoto V. Federation of Pakistan through Secretary Finance, Govt. of Pakistan, Islamabad and another" (2025 PLC (C.S.) 1559), "Imtiaz Ahmed V. Federation of Pakistan through Secretary Defence and others" (2024 PLC (C.S.) 382), "Bashir Ahmed V. Federation of Pakistan, Ministry of Defence through

Secretary and 3 others" (2021 PLC (C.S.) Note 18), "Justice (R) Karamat Nazir Bhandari V. Federation of Pakistan and others" (PLD 2014 Lahore 506) and "Akbar Shah V. Securities and Exchange Commission of Pakistan through Chairman" (2011 PLC (C.S.) 1175), it has been held that the service rendered in temporary capacity, when followed by confirmation, shall be treated as qualifying service for the purposes of pension and gratuity. The case-law relied upon by the learned counsel for the petitioner thus also found to be directly applicable and fully supportive of the petitioner's stance, and substantially fortifies his claim for inclusion of the aforesaid period towards his qualifying service.

8. In view of foregoing discussion, this Constitutional Petition is **allowed**, and the impugned orders are set aside. Consequently, the *ad hoc* service rendered by the petitioner with the PARB from 15.08.1985 to 13.10.1990 shall be counted towards his qualifying service for the purposes of pensionary benefits, in accordance with law and the relevant rules governing the field. Accordingly, the respondents are directed to recalculate and release the petitioner's pensionary benefits expeditiously.

(ABID AZIZ SHEIKH)
JUDGE

Approved for Reporting

JUDGE

Arsalan*